

13 & 14 section one of the Poor Law Emergency Provisions  
 Geo. 5. c. 6. Continuance (Scotland) Act, 1924, shall continue in force  
 14 & 15 until the fifteenth day of May, nineteen hundred and  
 Geo. 5. c. 9. twenty-seven, subject to the following modification:—

the power conferred on a parish council by section three of the Local Authorities (Emergency Provisions) Act, 1923, to make arrangements with a local authority for the employment by such authority of destitute able-bodied persons out of employment and applying for relief on any work of public utility instituted for the relief of distress due to unemployment, and to contribute towards the expenditure of such authority on such work shall be exercisable whether the work is carried out by means of labour employed directly by the authority or by means of labour employed by a person contracting with the authority for the execution of the work, and the proviso to paragraph (a) of the said section three (which provides that no contribution shall be made by a council unless the work is carried out by means of labour employed directly by the authority) shall cease to have effect.

Short title.

2. This Act may be cited as the Poor Law Emergency Provisions Continuance (Scotland) Act, 1925.

## CHAPTER 36.

An Act to grant certain Duties of Customs and Inland Revenue (including Excise), to alter other Duties, and to amend the law relating to Customs and Inland Revenue (including Excise) and the National Debt, and to make further provision in connection with Finance.

[30th June 1925.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public

revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

## PART I.

## CUSTOMS AND EXCISE.

1. The duty of customs payable on tea until the first day of August, nineteen hundred and twenty-five, under section one of the Finance Act, 1924, shall, subject to the provisions of section eight of the Finance Act, 1919 (which relates to imperial preferential rates), continue to be charged, levied and paid until the first day of August, nineteen hundred and twenty-six, that is to say:—

Tea . . . the pound fourpence.

2. The additional duties of excise imposed by section eleven of the Finance (No. 2) Act, 1915, upon medicines liable to duty shall continue to be charged, levied and paid until the first day of August, nineteen hundred and twenty-six.

3.—(1) There shall on and after the first day of July, nineteen hundred and twenty-five, be charged, levied and paid on any of the following articles imported into Great Britain or Northern Ireland the following duties of customs, that is to say:—

|                                                                                                                             |                                                                                                             |
|-----------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------|
| Motor cars, including motor bicycles<br>and motor tricycles - - -                                                           | } An amount<br>equal to<br>thirty-three<br>and<br>one-third<br>per cent. of<br>the value of<br>the article. |
| Accessories and component parts of<br>motor cars, motor bicycles, or<br>motor tricycles other than tyres -                  |                                                                                                             |
| Musical instruments, including<br>gramophones, pianolas, and other<br>similar instruments - - -                             |                                                                                                             |
| Accessories and component parts of<br>musical instruments, and records<br>and other means of reproducing<br>music - - - - - |                                                                                                             |
| Clocks, watches, and the component<br>parts of clocks and watches -                                                         |                                                                                                             |

Duty on  
tea.

14 & 15 Geo.

5. c. 21.

9 & 10 Geo.

5. c. 32.

Continua-  
tion of  
increased  
medicine  
duties.

5 & 6 Geo. 5.  
c. 89.

Customs  
duties on  
motor cars,  
musical  
instruments,  
clocks,  
films, &c.

Cinematograph films imported for the purpose of the exhibition of pictures or other optical effects by means of a cinematograph or other similar apparatus :—

|                                                                                                                                 | Per linear foot<br>of the standard<br>width of<br>$1\frac{3}{8}$ inches.<br>£ s. d. |   |                |
|---------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------|---|----------------|
| Blank film, on which no picture has been impressed, known as raw film or stock - - - -                                          | 0                                                                                   | 0 | $0\frac{1}{3}$ |
| Positives, <i>i.e.</i> , films containing a picture for exhibition, whether developed or not - - -                              | 0                                                                                   | 0 | 1              |
| Negatives, <i>i.e.</i> , films containing a photograph, whether developed or not, from which positives can be printed - - - - - | 0                                                                                   | 0 | 5              |

12 & 13 Geo. 5. c. 17.  
13 & 14 Geo. 5. c. 14.

(2) The provisions of subsections (1), (3), (4), (5) and (6) of section thirteen of the Finance (No. 2) Act, 1915, of section twelve of the Finance Act, 1922, and of section nine of the Finance Act, 1923, which are set out in the First Schedule to this Act, and which as originally enacted applied in relation to the duties charged by the Finance (No. 2) Act, 1915, on the articles or some of the articles charged with duty by this section, shall have effect as if they were re-enacted in this Act and in terms made applicable to the duties imposed by this section.

Customs  
duties on  
silk and  
artificial  
silk.

4. There shall on and after the first day of July, nineteen hundred and twenty-five, be charged, levied and paid on the importation into Great Britain or Northern Ireland of the articles specified in the first column of Part I. of the Second Schedule to this Act respectively the duties of customs specified in the second column of the said Part I., and there shall be allowed and paid the drawbacks set out in Part II. of the said Schedule, but subject as respects both duties and drawbacks to the provisions contained in Part III. of the said Schedule.

Excise duty  
on artificial  
silk.

5.—(1) There shall on and after the first day of July, nineteen hundred and twenty-five, be charged, levied and paid on every pound weight of artificial silk

singles yarn or straw manufactured in Great Britain or Northern Ireland (other than yarn produced by spinning from artificial silk waste on which duty has been paid under this Act) an excise duty of one shilling, and on every pound weight of artificial silk waste so manufactured an excise duty of sixpence, and there shall, as from the date aforesaid, be paid and allowed the drawbacks set out in Part II. of the Second Schedule hereto, but subject as respects both duties and drawbacks to the provisions contained in Part III. of that Schedule.

(2) There shall on and after the date aforesaid be charged, levied and paid on a licence to be taken out annually by a manufacturer of artificial silk yarn in Great Britain or Northern Ireland an excise duty of one pound.

(3) The Commissioners may make regulations—

- (a) prohibiting the manufacture of artificial silk yarn or waste in Great Britain or Northern Ireland except by persons holding a licence and having made entry for that purpose;
- (b) fixing the date of the expiration of the licence;
- (c) regulating the manufacture of any such yarn or waste and the delivery thereof from the manufactory with a view to securing and collecting from the manufacturers thereof the excise duty imposed by this section;
- (d) applying to the excise duty and drawbacks on any such yarn or waste and to manufacturers thereof any enactments relating to any duty or drawback of excise or customs;
- (e) providing for any exemption required for the purpose of relieving from duty any artificial silk intended for exportation.

(4) If any person acts in contravention of, or fails to comply with, any regulation made under this section, the article in respect of which the offence is committed shall be forfeited and the person committing the offence shall be liable in respect of each offence to an excise penalty of fifty pounds.

(5) In this section the expression “artificial silk yarn” includes artificial silk thread and straw.

Customs  
duty on  
lace.

6.—(1) During a period of five years beginning on the first day of July, nineteen hundred and twenty-five, a duty of customs equal to thirty-three and one-third per cent. of the value of the goods shall be charged on the importation into Great Britain or Northern Ireland of any of the following goods (that is to say):—

Lace of cotton, silk, or other fibre, whether made by hand or machine;

Products (not being solid fabrics) of the machines known as the Leaver’s lace machine, the lace curtain machine, the lace net machine, or the circular lace machine;

Embroidery manufactured on net or any fabric which, or the main part of which, is eliminated before the article reaches its final stage.

(2) If any goods chargeable with duty under this section are proved to the satisfaction of the Commissioners to be goods brought back into Great Britain or Northern Ireland after having been exported therefrom for the purpose of undergoing any process out of Great Britain or Northern Ireland, the value of the goods for the purposes of this section shall be taken to be their value as ascertained in accordance with the provisions of this Part of this Act after deducting therefrom such amount as is proved to the satisfaction of the Commissioners to have been the value of the goods at the time of exportation, together with freight and insurance outwards.

(3) If it is proved to the satisfaction of the Commissioners that duty has been paid under this section in respect of any goods, and that the goods have not been used in Great Britain or Northern Ireland, a drawback equal to the amount of the duty so paid shall be allowed on the goods if exported as merchandise.

Customs  
duty on  
imported  
hops, and

7.—(1) During a period of four years beginning on the sixteenth day of August, nineteen hundred and twenty-five, there shall be charged, levied and paid on the following goods imported into Great Britain

or Northern Ireland the following duties of customs, that is to say :—

|                                                                              | £ | s. | d. |                                                                                                                                                                          |
|------------------------------------------------------------------------------|---|----|----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Hops . . . . . the cwt.                                                      | 4 | 0  | 0  |                                                                                                                                                                          |
| Every extract, essence or other similar preparation made from hops . . . . . |   |    |    | consequential modifications of beer duties and drawbacks.                                                                                                                |
|                                                                              |   |    |    | An amount equal to the duty on the quantity of hops which, in the opinion of the Commissioners, has been used in the manufacture of the extract, essence or preparation, |

and as from the beginning of the said period there shall, on the exportation from Great Britain or Northern Ireland of hops in the case of which it is shown to the satisfaction of the Commissioners that they were imported in the packages in which they are being exported, be allowed and paid a drawback equal to the duties of customs shown to the satisfaction of the Commissioners to have been paid in respect thereof.

(2) There shall during the period of four years aforesaid, in addition to the duties of customs payable on beer at the commencement of this Act, be charged, levied and paid on beer imported into Great Britain or Northern Ireland the following additional duty of customs, that is to say :—

For every thirty-six gallons where the worts thereof were before fermentation of a specific gravity of one thousand and fifty-five degrees - ten pence

and there shall, in addition to the customs drawback payable at the commencement of this Act, be allowed and paid, on the exportation or shipment for use as stores of beer on which it is shown to the satisfaction of the Commissioners that the aforesaid additional customs duty has been paid, an additional drawback, calculated according to the original gravity of the beer, at the rate of tenpence for every thirty-six gallons of an original gravity of one thousand and fifty-five degrees.

(3) During a period of four years beginning on the sixteenth day of November, nineteen hundred and twenty-five, there shall, in addition to the excise drawback payable at the commencement of this Act, be allowed and paid in respect of beer exported from Great Britain or Northern Ireland as merchandise or shipped for use as stores an additional drawback, calculated according to the original gravity of the beer, at the rate of tenpence for every thirty-six gallons of an original gravity of one thousand and fifty-five degrees.

(4) In the case of beer which is not of the gravity of one thousand and fifty-five degrees, the duty or the drawback under this section, as the case may be, shall be varied proportionately.

Imperial  
preference  
in respect of  
sugar, &c.

8.—(1) During a period of ten years beginning on the first day of July, nineteen hundred and twenty-five, sugar, molasses, glucose and saccharin, if Empire products, shall be charged respectively with customs duties at preferential rates representing the full rates of customs duty for the time being in force reduced by the respective amounts specified in the second column of Part I. of the Third Schedule to this Act instead of at the preferential rates chargeable under the Second Schedule to the Finance Act, 1919, and section eight of the said Act shall have effect accordingly :

Provided that, if at any time during the period aforesaid the full rate of the customs duty chargeable in respect of any of the said articles is decreased so as to be equal to or less than the amount of the reduction to be allowed as aforesaid, that article, if an Empire product, shall be free of duty.

(2) In lieu of the present excise duties on sugar, molasses, glucose and saccharin there shall, during the period aforesaid, be charged, levied and paid excise duties at rates equal to the preferential rates of the customs duties for the time being chargeable on the like articles.

(3) Where the duty of customs or excise payable on any molasses, or in respect of the material from which any molasses is produced, is payable under this section at a reduced rate, any drawback or allowance payable in

respect thereof shall be reduced to an amount bearing to the full customs drawback or allowance the same proportion as the reduced rate of duty bears to the full customs rate.

(4) In this Act the expression " Empire products " means such Empire products as are entitled to preferential rates under section eight of the Finance Act, 1919.

9.—(1) As from the first day of July, nineteen hundred and twenty-five, the goods specified in the first column of Part II. of the Third Schedule to this Act shall, if Empire products, be charged respectively with customs duties at the preferential rates specified in the second column of the said Part II. instead of at the preferential rates chargeable under the Second Schedule to the Finance Act, 1919, and section eight of the said Act shall have effect accordingly.

Imperial  
preference  
in respect  
of other  
goods.

(2) The goods specified in the first column of Part III. of the Third Schedule to this Act shall, if Empire products, be charged respectively with customs duties at the preferential rates specified in the second column of the said Part III. in all respects as if the said Part III. were included in the Second Schedule to the Finance Act, 1919.

(3) As from the first day of July, nineteen hundred and twenty-five, section nine of the Finance Act, 1919, (which reduced the excise duty payable on certain goods, including tobacco, by one-sixth), shall have effect as though, in respect of tobacco, one-fourth were substituted for one-sixth.

(4) Where the duty of customs or excise on any tobacco is payable under this section at a reduced rate, any drawback payable in respect thereof shall be reduced to an amount bearing to that drawback the same proportion as the reduced rate payable under this section bears to the rate of duty which would otherwise have been payable.

10.—(1) Where the rate of a duty of customs imposed by this Act on any article is a percentage of the value of the article, that value shall be taken to be the price which an importer would give for the article, if it were delivered, freight and insurance paid, in bond at the port of

Definition  
of value for  
purposes of  
ad valorem  
duties.

importation, and duty shall be paid on that value as fixed by the Commissioners :

Provided that in the case of a motor car (including a motor bicycle and a motor tricycle) imported with tyres attached, the value of the tyres shall be deducted from the value of the car for the purpose of the charge of duty.

(2) Any dispute arising as to the proper rate of duty payable under this Act shall, so far as any question of value is concerned, be referred to a referee to be appointed by the Lord Chancellor, and the decision of the referee shall be final and conclusive :

Provided that the person to be appointed as a referee shall not be an official of any Government department.

39 & 40 Vict.  
c. 36.

Sections thirty and thirty-one of the Customs Consolidation Act, 1876, shall, as respects any such dispute as to value, have effect as if an application for reference to a referee under this provision were substituted for the action or suit mentioned in those sections.

(3) The procedure on any such reference shall be such as may be determined by the referee.

Provision  
as to re-  
importation  
of certain  
goods  
charged  
with duty  
by Act.  
42 & 43 Vict.  
c. 21.

**11.** Section six of the Customs and Inland Revenue Act, 1879, shall not apply to articles on which a duty of customs is charged by section three, section four or section six, of this Act, and any such articles re-imported into Great Britain or Northern Ireland after exportation therefrom shall be exempt from duty if it is shown to the satisfaction of the Commissioners either that the article had not previously to exportation been imported into Great Britain or Northern Ireland at a time when a duty of customs was payable on articles of that class (whether under this Act or under the Finance (No. 2) Act, 1915), and had not previously to exportation been made in Great Britain or Northern Ireland at a time when an excise duty was payable on articles of that class, or, where duty was paid, that no drawback of duty was allowed on exportation, or that any drawback so allowed has been repaid to the Exchequer.

**12.** Section fourteen of the Finance Act, 1924 (which makes provision for the allowance of a drawback on the exportation of certain blended tea), shall have effect as though reference therein to exportation included references to shipment as ships' stores and to deposit in a warehouse for use as ships' stores, and the expression "exporter" shall be construed accordingly.

Extension  
of s. 14 of  
Finance  
Act, 1924,  
to tea  
shipped as  
stores.

## PART II.

### INCOME TAX.

**13.—(1)** Income tax for the year 1925–26 shall be charged at the rate of four shillings.

Income tax  
for 1925–26.

(2) All such enactments relating to income tax as were in force with respect to duties of income tax granted for the year 1924–25 shall have full force and effect with respect to any duties of income tax granted by this Act.

(3) The annual value of any property which has been adopted for the purpose of income tax under Schedules A and B for the year 1924–25 shall be taken as the annual value of that property for the same purpose for the year 1925–26:

Provided that this subsection shall not apply to lands, tenements and hereditaments in the administrative county of London with respect to which the valuation list under the Valuation (Metropolis) Act, 1869, is, by that Act, made conclusive for the purposes of income tax.

32 & 33 Vict.  
c. 67.

**14.—(1)** The rates of super-tax for the year 1925–26 shall, for the purposes of section four of the Income Tax Act, 1918, as amended by any subsequent enactment, be as follows:—

Super-tax  
for 1925–26.  
8 & 9 Geo. 5  
c. 40.

In respect of the first two  
thousand pounds of the  
income . . . . Nil.

In respect of the excess over  
two thousand pounds—

For every pound of the  
first five hundred  
pounds of the excess -

Ninepence.

For every pound of the  
next five hundred  
pounds of the excess -

One shilling.

For every pound of the  
next one thousand  
pounds of the excess -

One shilling and six-  
pence.

For every pound of the  
next one thousand  
pounds of the excess -

Two shillings and  
threepence.

For every pound of the  
next one thousand  
pounds of the excess -

Three shillings.

For every pound of the  
next two thousand  
pounds of the excess -

Three shillings and  
sixpence.

For every pound of the  
next two thousand  
pounds of the excess -

Four shillings.

For every pound of the  
next five thousand  
pounds of the excess -

Four shillings and  
sixpence.

For every pound of the  
next five thousand  
pounds of the excess -

Five shillings.

For every pound of the  
next ten thousand  
pounds of the excess -

Five shillings and  
sixpence.

For every pound of the  
remainder of the ex-  
cess - - - -

Six shillings.

(2) All such enactments relating to super-tax as were in force with respect to the super-tax granted for the year 1924-25 shall have full force and effect with respect to the super-tax granted under this section.

15.—(1) An individual who makes in the manner prescribed by the Income Tax Acts a claim in that behalf and who makes a return in the prescribed form of his total income shall, for the purpose of ascertaining the amount of his assessable income for the purpose of income tax, be allowed a deduction from the amount of his earned income of a sum equal to one-sixth of the amount of that income, but not exceeding in the case of any individual two hundred and fifty pounds.

Allowances in respect of earned income and allowances from total income of persons of age of 65 years.

(2) Any individual who, in the manner prescribed by the Income Tax Acts, makes a claim in that behalf, makes a return in the prescribed form of his total income, and proves that at the commencement of the year of assessment either he or, in the case of a married man, his wife living with him was of the age of sixty-five years or upwards and that his total income for the year of assessment does not exceed five hundred pounds, shall, for the purpose of ascertaining the amount of his assessable income for the purpose of income tax, be allowed a deduction from the amount of his total income of a sum equal to one-sixth of the amount of that income, and any individual who would, but for the fact that his total income exceeds five hundred pounds, be entitled to an allowance as aforesaid shall be entitled to have the amount of the income tax payable in respect of his total income reduced, where necessary, so as not to exceed a sum equal to the aggregate of the two following amounts, that is to say, the amount of the tax which would have been payable if his total income had amounted to, but had not exceeded, five hundred pounds, and one-half of the amount by which his total income exceeds five hundred pounds :

Provided that any deduction or relief under this subsection shall be in substitution for and not in addition to the deduction under subsection (1) of this section.

(3) The provisions of sections twenty-seven, twenty-eight, twenty-nine and thirty of the Income Tax Act, 1918, and of paragraph XVII of the Fifth Schedule to that Act shall apply for the purpose of claims under this section, and references in any enactment to section sixteen of the Finance Act, 1920, or to the deduction of any allowance in respect of earned income shall be construed as references to this section and to the allowances and relief thereunder :

10 & 11 Geo.  
5. c. 18.

Provided that, where, on an application made for the purpose under the provisions of the Income Tax Acts, income tax for any year is assessable and chargeable on the incomes of the husband and wife respectively as if they were not married, the benefit of any allowance or relief under the last preceding subsection shall be apportioned between the husband and wife according to the amounts of their respective total incomes.

(4) Paragraph (b) of subsection (1) of section one hundred and five of the Income Tax Act, 1918, as amended by the Third Schedule to the Finance Act, 1920, shall have effect as though the words "one hundred and sixty pounds" were substituted for the words "one hundred and fifty pounds."

(5) In this section the expressions "earned income" and "total income" mean respectively earned income as estimated in accordance with the provisions of the Income Tax Acts and total income from all sources as so estimated.

Allowance  
of deduc-  
tion for  
wear and  
tear in case  
of profits of  
professions,  
&c., and of  
profits  
arising from  
occupation  
of land.

**16.** Rules 6 and 7 of Cases I and II of Schedule D (which provide, in connection with the charge to income tax under that Schedule of the profits or gains of a trade, for the allowance of deductions in respect of the wear and tear of machinery and plant and in respect of expenses incurred in replacing obsolete machinery or plant) shall apply as if references in those Rules to the profits or gains of a trade included references to the profits or gains, whether assessable under Schedule D or otherwise, of a profession, employment, vocation or office, and, where they are ascertained otherwise than by reference to assessable value, to the profits or gains arising from the occupation of lands, including woodlands, and in relation to profits or gains assessable under some Schedule other than Schedule D as if the provisions of the said Rules were applicable to the tax under that other Schedule :

Provided that—

- (i) where the profits or gains are not assessed under Schedule D, the powers of the Additional Commissioners under paragraph (4) of the said Rule 6 may be exercised by the General Commissioners; and

- (ii) in the case of a claim for the allowance of a deduction for wear and tear in any year from the profits or gains arising to any person from the occupation of lands, including woodlands, the appropriate deduction for wear and tear shall, for the purposes of paragraph (6) of the said Rule 6, be deemed to have been allowed for any previous year for which profits or gains arising to that person from the occupation of lands, including woodlands, were determined by reference to assessable value.

17.—(1) Where sales or transactions are carried out on behalf of a non-resident person through a broker in the ordinary course of his business as such, and the broker satisfies the conditions required to be satisfied for the purposes of this section, then, notwithstanding that the broker is a person who acts regularly for the non-resident person as such broker, the non-resident person shall not be chargeable to income tax in the name of that broker in respect of profits or gains arising from those sales or transactions.

Non-resident persons not to be chargeable to income tax in name of certain agents.

(2) The conditions required to be satisfied for the purposes of this section are that the broker must be a person carrying on *bonâ fide* the business of a broker in Great Britain or Northern Ireland, and that he must receive in respect of the business of the non-resident person which is transacted through him remuneration at a rate not less than that customary in the class of business in question.

(3) In this section the expression “broker” includes a general commission agent.

(4) Rule 10 of the General Rules shall have effect subject to the provisions of this section.

18. Weekly wage-earners to whom Rule 2 of the Rules applicable to Cases I and II of Schedule D applies shall for the year 1925–26 be assessed and charged to tax in respect of their wages in each half of the year instead of in each quarter of the year, and for references in any enactment to quarterly assessment and charge and to quarters of the year in connection with the assessment and charge of weekly wage-earners there shall be substituted references to half-yearly assessment

Assessment of weekly wage-earners to be half-yearly instead of quarterly.

and charge and to half-years, and all such enactments shall have effect accordingly.

Claims for exemption in respect of income of charities and for repayment of tax in respect of interest paid to banks, and right of appeal in connection therewith.  
11 & 12 Geo. 5. c. 32.

**19.—(1) Any claim for—**

- (a) exemption from income tax under the provisions of section thirty-seven of the Income Tax Act, 1918, or section thirty of the Finance Act, 1921 (which sections provide respectively for exemption in respect of certain income of charities and for exemption in respect of lands owned and occupied by charities and of profits of trades carried on by beneficiaries of charities); or
- (b) repayment of income tax under section thirty-six of the Income Tax Act, 1918 (which provides for the repayment in certain cases of income tax in respect of interest paid to banks, discount houses, &c., out of taxed profits);

shall be made to the Commissioners of Inland Revenue in such form as they may prescribe, and the said Commissioners shall on proof of the facts to their satisfaction allow the claim accordingly.

(2) Any person who is aggrieved by the decision of the said Commissioners on a claim made by him as aforesaid may, by notice in writing to that effect given to the said Commissioners within twenty-one days from the date on which notice of the decision is given to him, make an application to have his claim for exemption or repayment, as the case may be, heard and determined by the Special Commissioners.

(3) Where any such application as aforesaid is made, the Special Commissioners shall hear and determine the claim in like manner as an appeal made to them against an assessment under Schedule D, and all the provisions of the Income Tax Acts relating to such an appeal (including the provisions relating to the statement of a case for the opinion of the High Court on a point of law) shall apply accordingly with any necessary modifications.

(4) Section forty of the Income Tax Act, 1918 (which contains provisions with respect to claims under sections thirty-seven, thirty-eight and thirty-nine of

that Act), shall cease to apply to claims for exemption under section thirty-seven of that Act.

**20.**—(1) Where under or by virtue of the Trading with the Enemy Acts, 1914 to 1918, or any Order in Council made under any Treaty of Peace Act, any securities to which this section applies became vested in any custodian or administrator of enemy property, any question of liability to income tax in respect of the dividends or interest on the securities shall be determined as if the securities had not become so vested.

Provision as to income tax on dividends of certain securities vested in custodian or administrator of enemy property.

(2) The securities to which this section applies are those classes of securities, stocks, funds or shares the dividends or interest whereon are chargeable to income tax under Schedule C or under Rule 7 of the Miscellaneous Rules applicable to Schedule D, or were chargeable to income tax under any enactments replaced by the said Schedule C or the said Rule 7 and for the purposes of this section the expression "Treaty of Peace Act" means any Act for carrying into effect any treaty of peace made after the late war between His Majesty and any other power.

**21.** Section twenty-one of the Finance Act, 1923 (which grants an exemption for charities in the Irish Free State in respect of income tax for the year 1923–24), shall apply with respect to income tax chargeable for the years 1925–26, 1926–27, and 1927–28, as it applied with respect to income tax chargeable for the year 1923–24.

Continuation of s. 21 of Finance Act, 1923. 13 & 14 Geo. 5. c. 14.

### PART III.

#### DEATH DUTIES.

**22.** The scale set out in the Fourth Schedule to this Act shall in the case of persons dying after the commencement of this Act be substituted for the scale set out in the Third Schedule to the Finance Act, 1919, as the scale of rates of estate duty:

Amended rates of estate duty.

Provided that, where an interest in expectancy within the meaning of Part I. of the Finance Act, 1894, in any property has, before the twenty-eighth day of April, nineteen hundred and twenty-five, been *bonâ fide* sold or mortgaged for full consideration in money or money's worth, then no other duty on that property

57 & 58 Vict. c. 30.

shall be payable by the purchaser or mortgagee when the interest falls into possession than would have been payable if this Part of this Act had not passed, and in the case of a mortgage any higher duty payable by the mortgagor shall rank as a charge subsequent to that of the mortgagee.

Estate duty payable in respect of agricultural property to be charged in part on agricultural value at rate under Finance Act, 1919.

**23.—**(1) Where an estate in respect of which estate duty is payable on the death of a person dying after the commencement of this Act comprises or consists of agricultural property, the estate duty payable in respect of the agricultural property shall, instead of being charged on the principal value thereof at the appropriate rate payable under this Act, be charged as follows, that is to say, the duty shall be charged on the agricultural value of the property at the appropriate rate payable under the scale of rates set out in the Third Schedule to the Finance Act, 1919, and shall be charged on the amount by which the principal value of the agricultural property exceeds the agricultural value thereof (in this Act referred to as “the excess principal value”) at the appropriate rate payable under the scale set out in the Fourth Schedule to this Act.

(2) For the purposes of this section the agricultural value of agricultural property shall be taken to be the value which the property would bear if it were subject to a perpetual covenant prohibiting its use otherwise than as agricultural property, decreased by the value of any timber, trees, wood or underwood growing thereon.

(3) Where any agricultural property is subject to a mortgage, debt or incumbrance in respect of which an allowance is by law to be made for the purposes of estate duty, the mortgage, debt or incumbrance shall, for the purposes of this section, be apportioned between the agricultural value of the property and the excess principal value of the property in proportion to the amounts of those two values respectively.

(4) In this section the expression “agricultural property” means agricultural property within the meaning of paragraph (g) of subsection (1) of section twenty-two of the Finance Act, 1894, and the expression “appropriate rate” means the rate of estate duty appropriate to the principal value of the estate passing on the death of the deceased.

24. For the purposes of section eighteen of the Finance Act, 1894, and of section fifty-eight of the Finance (1909-10) Act, 1910, a succession shall be deemed to arise on the happening of the death by reason of which the successor, or any person in his right or on his behalf, becomes entitled in possession to the succession or to the receipt of the income or profits thereof.

Determina-  
tion for  
purposes of  
succession  
duty of date  
on which  
succession  
arises.  
10 Edw. 7.  
c. 8.

#### PART IV.

##### GENERAL.

25.—(1) Where a trade or business of any kind is carried on by or on behalf of the Government of any part of His Majesty's Dominions which is outside Great Britain and Northern Ireland, that Government shall, in respect of the trade or business and of all operations in connection therewith, all property occupied in Great Britain or Northern Ireland and all goods owned in Great Britain or Northern Ireland for the purposes thereof, and all income arising in connection therewith, be liable, in the same manner as in the like case any other person would be, to all taxation for the time being in force in Great Britain or Northern Ireland.

Liability of  
Dominion  
Govern-  
ments to  
taxation  
in respect of  
trading  
operations.

(2) In this section the expression "His Majesty's Dominions" includes any territory which is under His Majesty's protection or in respect of which a mandate is being exercised by the Government of any part of His Majesty's Dominions.

(3) Nothing in this section shall—

- (a) affect the immunity of any such Government as aforesaid from taxation in respect of any income or property to which subsection (1) of this section does not apply; or
- (b) be taken to prejudice the question of any liability on the part of any such Government in respect of any period before the commencement of this Act to taxation in respect of the matters mentioned in subsection (1).

26. A High Commissioner or Agent-General within the meaning of section nineteen of the Finance Act, 1923 (which exempts from income tax the salaries of High Commissioners, Agents-General and their staffs), who is resident in Great Britain or Northern Ireland shall be

Further  
relief from  
tax in  
respect of  
income of

High Com-  
missioners,  
Agents-  
General and  
their staffs.

entitled to the same immunity from income tax (including super-tax) and land tax as that to which an accredited minister of a foreign state so resident is entitled, whether by virtue of any Act or otherwise, and any person having or exercising any employment to which the said section nineteen applies shall be entitled to the same immunity from income tax (including super-tax) and land tax as that to which a member of the staff of an accredited minister of a foreign state is entitled, whether by virtue of any Act or otherwise.

Continuance  
during  
current  
financial  
year of s. 58  
of 10 & 11  
Geo. 5. c. 18.  
38 & 39 Vict.  
c. 45.

**27.** Section fifty-eight of the Finance Act, 1920 (which provides that amounts applied out of revenue in paying off debt are to be deemed to be expenditure within the meaning of sections four and five of the Sinking Fund Act, 1875), shall apply in relation to the current financial year as it applied in relation to the financial year ending on the thirty-first day of March, nineteen hundred and twenty-one.

Construc-  
tion, short  
title, appli-  
cation, and  
repeal.  
39 & 40 Vict.  
c. 36.

**28.**—(1) Part I of this Act so far as it relates to duties of customs shall be construed together with the Customs (Consolidation) Act, 1876, and any enactments amending that Act, and, so far as it relates to duties of excise, shall be construed together with the Acts which relate to the duties of excise and the management of those duties, and the expression “Commissioners” in the said Part I means the Commissioners of Customs and Excise.

(2) Part II of this Act shall be construed together with the Income Tax Acts.

(3) Part III of this Act shall be construed together with the Finance Act, 1894.

(4) This Act may be cited as the Finance Act, 1925.

(5) Such of the provisions of this Act as relate to matters with respect to which the Parliament of Northern Ireland has power to make laws shall not extend to Northern Ireland.

(6) The enactment set out in the Fifth Schedule to this Act is hereby repealed to the extent mentioned in the third column of that Schedule.

## SCHEDULES.

### FIRST SCHEDULE.

Section 3.

#### ENACTMENTS APPLIED FOR PURPOSE OF DUTIES IMPOSED BY SECTION 3.

*Subsections (1), (3), (4), (5) and (6) of s. 13 of Finance (No. 2)  
Act, 1915.*

13.—(1) If it is proved to the satisfaction of the Commissioners of Customs and Excise that a new import duty has been duly paid in respect of any article, and that the article has not been used in Great Britain or Northern Ireland, a drawback equal to the amount of duty paid shall be allowed on that article if exported as merchandise.

(3) Where it is proved to the satisfaction of the Commissioners of Customs and Excise that any article is of a kind mainly used as an accessory or a component part which is liable to a new import duty but is imported for use for some other purpose or has been and is being exclusively used for some other purpose, the Commissioners shall, subject to such conditions (if any) as they think fit to impose, allow the article to be imported free of duty, or repay any duty paid on importation, as the case requires.

(4) Motor cars which are proved to the satisfaction of the Commissioners of Customs and Excise to be constructed and adapted for use, and intended to be used solely, as motor omnibuses or motor ambulances, or in connection with the conveyance of goods or burden in the course of trade or husbandry, or by a local authority as fire engines or otherwise for the purposes of their fire brigade service, and chassis, component parts, and accessories, which are so proved to be intended to be used solely for any such motor cars, shall not be charged with the new import duty:

Provided that in such cases as the Commissioners of Customs and Excise direct, cars, chassis, accessories, or parts, as the case may be, shall not be exempted unless they are marked or stamped in such manner as the Commissioners direct or approve with some distinctive stamp or mark showing that they are only to be so used.

On any transfer of a motor car or chassis which has been exempted under this provision, the transferor shall give notice of the transfer and of the name and address of the transferee to the Commissioners of Customs and Excise.

1st Sch  
—cont.

If, while the duty on motor cars, motor bicycles and motor tricycles, and accessories and component parts thereof under this Act remains in force, any person obliterates or removes any such distinctive stamp or mark, or uses any motor car, chassis, accessory, or part which has been exempted from duty under this provision for any purpose other than the purposes therein mentioned, or fails to give notice of a transfer in accordance with this provision, he shall be liable on summary conviction to a fine not exceeding one hundred pounds, or, at the option of the court, to imprisonment, with or without hard labour, for a term not exceeding six months.

If it is shown to the satisfaction of the Commissioners of Customs and Excise that any motor car, chassis, component part, or accessory has been, and is being, exclusively used for purposes which entitle it to an exemption from duty under this provision, the Commissioners may, subject to such conditions (if any) as they think fit to impose, repay any duty paid on the car, chassis, part or accessory on importation.

(5) The Treasury may by order exempt any articles mentioned in the order which are liable to any new import duty from that duty if they are satisfied that, having regard to the small value of the article, it is inexpedient that the duty should be charged.

(6) The Treasury may make regulations providing for the total or partial exemption for a limited period from the new import duty of any motor cars, including motor bicycles and motor tricycles, brought into Great Britain or Northern Ireland by persons making only a temporary stay therein.

#### *S. 12 of Finance Act, 1922.*

Amendment  
as to duties  
to be charged  
on certain  
negative  
cinemato-  
graph films.

12. If it is proved to the satisfaction of the Commissioners of Customs and Excise as respects any imported negative cinematograph film, whether developed or undeveloped, that the production of the film was organised by persons whose chief or only place of business was in the United Kingdom, and that the producer of the film and the principal actors and artists employed for the production thereof were British subjects and domiciled in the United Kingdom, that film shall, subject to compliance with such conditions as the Commissioners may by regulation prescribe, be treated for the purpose of the duties charged on imported cinematograph films by section twelve of the Finance (No. 2) Act, 1915, as being blank film.

#### *S. 9 of Finance Act, 1923.*

Amendment  
of s. 12 of  
Finance Act,  
1922.

9. Section twelve of the Finance Act, 1922, which reduces the duties to be charged on certain negative cinematograph films, shall have effect as though for the condition requiring all the

principal actors and artists employed for the production of a film to be British subjects and domiciled in Great Britain or Northern Ireland there were substituted a condition requiring all such principal actors and artists, except five, or if the total number of the principal actors and artists is less than twenty not less than three-quarters of the principal actors and artists to be British subjects and domiciled as aforesaid, and for the purposes of the said section twelve, as amended by this section, the expression "artists" shall include the person working the photographic camera by means of which the pictures composing the film are taken.

1ST SECT.  
—cont.

## SECOND SCHEDULE.

Sections 4,  
5.

### PART I.

#### CUSTOMS DUTIES.

| Article.                         | Amount of duty. |
|----------------------------------|-----------------|
| <b>SILK :</b>                    |                 |
| Cocoons and waste of all kinds—  | <i>s. d.</i>    |
| Undischarged - - - the lb.       | 1 0             |
| Wholly or in part discharged     |                 |
| other than noils - - - " "       | 3 0             |
| Noils - - - - - " "              | 1 0             |
| <b>Raw—</b>                      |                 |
| Undischarged - - - " "           | 3 0             |
| Wholly or in part discharged " " | 4 4             |
| <b>Yarn—</b>                     |                 |
| Undischarged - - - " "           | 4 8             |
| Wholly or in part discharged—    |                 |
| Not being noil yarn - " "        | 6 8             |
| Noil yarn - - - - - " "          | 1 5             |
| <b>Tissues—</b>                  |                 |
| Undischarged - - - " "           | 5 3             |
| Wholly or in part discharged—    |                 |
| Noil tissue - - - - - " "        | 1 7             |
| Tissue known as habutai          |                 |
| not dyed or printed - " "        | 6 6             |
| Other tissues - - - " "          | 7 9             |
| <b>ARTIFICIAL SILK :</b>         |                 |
| Waste - - - - - " "              | 1 0             |
| Singles yarn and straw - " "     | 2 0             |
| Doubled or twisted thread        |                 |
| advanced beyond the              |                 |
| stage of singles yarn - " "      | 3 0             |
| Tissues - - - - - " "            | 3 6             |

2ND SCH.  
—cont.

| Article.                                                                                                                                                                                                               | Amount of duty.                                                                      |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------|
| ANY OTHER ARTICLES MADE WHOLLY OR<br>IN PART OF SILK OR ARTIFICIAL SILK :                                                                                                                                              |                                                                                      |
| Where the article is made wholly of silk or artificial silk, or where the value of the silk or artificial silk component exceeds twenty per cent. of the aggregate of the values of all the components of the article. | An amount equal to thirty-three and one-third per cent. of the value of the article. |
| Where the value of the silk or artificial silk component exceeds five per cent., but does not exceed twenty per cent. of the aggregate of the values of all the components of the article.                             | An amount equal to ten per cent. of the value of the article.                        |
| Where the value of the silk or artificial silk component does not exceed five per cent. of the aggregate of the values of all the components of the article.                                                           | An amount equal to two per cent. of the value of the article.                        |

## PART II.

### DRAWBACKS.

1. IN THE CASE OF ANY OF THE FOLLOWING ARTICLES PRODUCED IN GREAT BRITAIN OR NORTHERN IRELAND FROM MATERIAL ON WHICH A DUTY OF CUSTOMS OR EXCISE HAS BEEN PAID—

|                                                                                                                    |       |
|--------------------------------------------------------------------------------------------------------------------|-------|
| Silk :                                                                                                             | s. d. |
| Noil yarn - - - the lb.                                                                                            | 1 5   |
| Thrown yarn—                                                                                                       |       |
| Not wholly discharged the lb.                                                                                      | 3 9   |
| Thrown yarn and spun yarn—                                                                                         |       |
| Wholly discharged - the lb.                                                                                        | 4 1   |
| Tissue—                                                                                                            |       |
| Not wholly discharged the lb.                                                                                      | 4 3   |
| Wholly discharged—                                                                                                 |       |
| If proved to the satisfaction of the Commissioners to have been produced from imported undischarged tissue the lb. | 7 9   |
| Tissue known as habutai if dyed or printed in Great Britain or Northern Ireland the lb.                            | 7 9   |
| Noil tissue - the lb.                                                                                              | 1 7   |
| In any other case the lb.                                                                                          | 5 6   |

## Article.

2ND SCH.  
—cont.

|                                                                                                                      |       |
|----------------------------------------------------------------------------------------------------------------------|-------|
| Artificial Silk :                                                                                                    | s. d. |
| Singles yarn made from staple fibre or other waste - the lb.                                                         | 0 9   |
| Doubled or twisted thread advanced beyond the stage of singles yarn—                                                 |       |
| If made from staple fibre or other waste - the lb.                                                                   | 0 10  |
| In any other case - the lb.                                                                                          | 1 7   |
| Tissue made from staple fibre or other waste - - the lb.                                                             | 0 11  |
| Tissues proved to the satisfaction of the Commissioners to be made from other forms of artificial silk - - - the lb. | 1 9   |

2. GOODS NOT PREVIOUSLY SPECIFIED IN THIS PART OF THIS SCHEDULE WHICH ARE MADE WHOLLY OR IN PART OF SILK OR ARTIFICIAL SILK WHICH IS PROVED TO THE SATISFACTION OF THE COMMISSIONERS TO HAVE BEEN CHARGED WITH DUTY UNDER THIS ACT AND WHICH ARE SHOWN TO BE IN SUCH FORM AND STATE THAT, IF DUTY HAD NOT BEEN PAID, THEY WOULD BE LIABLE TO THE SAME RATE OF DUTY AS THAT AT WHICH THEY OR THEIR COMPONENTS HAVE ALREADY BEEN CHARGED.

A drawback equal to the amount of duty payable on the same weight of the like goods.

## Article.

Rate or  
Amount of Drawback.

3. IN THE CASE OF ANY MADE UP ARTICLE CONSISTING WHOLLY OR PARTLY OF SILK OR ARTIFICIAL SILK :

If exported in the form and state in which it was imported.

A sum equal to the amount shown to the satisfaction of the Commissioners to have been paid as duty on the importation of the article.

2ND SCH.  
- *cont.*

| Article.                                                                           | Rate or<br>Amount of Drawback.                                                                                                                                                                            |
|------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| If manufactured in Great Britain or Northern Ireland from silk or artificial silk. | A sum equal to the amount payable as drawback in respect of such a quantity of the like silk or artificial silk as, in the opinion of the Commissioners, has been used in the manufacture of the article. |

### PART III.

#### PROVISIONS AS TO DUTIES AND DRAWBACKS.

1. In calculating for the purpose of any duty or drawback the weight of any yarn or tissue the weight of any fibres other than silk or artificial silk or of any waterproofing materials in the yarn or tissue shall be excluded, and where any drawback is payable in respect of any silk yarn or tissue which is loaded, the amount of the drawback shall be reduced by thirty per cent., unless the Commissioners are satisfied that the yarn or tissue was imported in the form of yarn or tissue, as the case may be, and was loaded at the time of being so imported or was manufactured in Great Britain or Northern Ireland.

2. Where the weight of the moisture contained in any raw silk or silk yarn exceeds eleven per cent. of the weight of the article, any duty payable in respect thereof shall be decreased by one per cent. of the amount of the duty for every one per cent. of moisture contained in the article in excess of eleven per cent.

3. Where any article chargeable with a duty under this Schedule is also chargeable with a duty under section three of this Act, the duty under this Schedule shall not be charged except in so far as the amount thereof exceeds the amount of the duty charged under the said section three.

4. Where any article chargeable under this Schedule with a duty equal to a percentage of the value of the article is also chargeable with the duty on lace imposed by this Act, the value of the lace in the article shall be excluded in computing the value of the article for the purpose of the duty under this Schedule, and where any article chargeable with duty under

this Schedule as a tissue is also chargeable with the duty on lace imposed by this Act, the duty under this Schedule shall not be charged except in so far as the amount thereof exceeds the amount of the lace duty.

2ND SCH.  
—*cont.*

5. Subject to such conditions as the Commissioners may impose, the excise duty charged by this Act on artificial silk yarn shall not be payable on any such yarn manufactured on the licensed premises of a manufacturer of such yarn from imported artificial silk waste in respect of which the duty of customs imposed by this Act has been duly paid.

6. Where it is shown to the satisfaction of the Commissioners that any yarn or tissue of silk or artificial silk is being imported solely for the purpose of undergoing a process in Great Britain or Northern Ireland the Commissioners may, subject to such conditions as they think fit to impose for securing the re-exportation of the goods, allow the goods to be imported free of duty.

7. If, on the importation into Great Britain or Northern Ireland of any article wholly or in part of silk or artificial silk, it is shown to the satisfaction of the Commissioners—

- (a) that the article was produced abroad by means of some process from an article exported from Great Britain or Northern Ireland, and that consequently the case does not fall within the provisions of section eleven of this Act; and
- (b) that the article is liable to duty at the same rate as the duty payable on the exported article from which it was produced; and
- (c) that any drawback paid on the exportation of the said article has been repaid;

the duty charged on the re-importation of the article shall, if chargeable by reference to the weight thereof, be charged only upon the amount by which the weight of the article on re-importation exceeds the weight at exportation and, if chargeable by reference to value, shall be charged only on the amount by which the value of the article at re-importation exceeds the value at exportation.

8. The Commissioners may make regulations for relieving from any duty of customs or excise chargeable in respect of artificial silk, any artificial silk which is to be used in the manufacture of tissues in part of artificial silk and in part of other fibre, if those tissues are intended for exportation.

9. Where a specified amount of duty is charged or a specified amount of drawback is allowed in respect of a specific

2ND SCH.  
—cont.

weight of an article, the amount of the duty or drawback, as the case may be, shall be increased or decreased proportionately in the case of any greater or less weight.

10. Subject to such conditions for safeguarding the revenue as the Commissioners may impose, the rates of drawback specified in Part IV. of this Schedule shall, in respect of yarn and tissues of artificial silk exported by any person who makes an application in that behalf to the Commissioners, have effect during such period, not being less than twelve months, as may be specified in the application in substitution for the rates of drawback set out in Part II. of this Schedule.

11. In calculating the amount of the drawback payable in respect of any tissue wholly or in part of silk or artificial silk, being tissue from which a portion of the surface has been burnt or cut away in the process of manufacture, the Commissioners shall make such allowance as seems to them proper in respect of any loss of weight due to the burning or cutting.

12. No drawback shall be payable in respect of any articles unless it is shown to the satisfaction of the Commissioners that a duty imposed by this Act has been duly paid in respect of the articles or of the material from which the articles were made and that the articles have been duly exported as merchandise or shipped for use as stores.

13. No drawback shall be payable under this Schedule in respect of any article unless the Commissioners are satisfied that it has not been used or, in the case of an article of clothing, that it has not been used otherwise than as a model for trade exhibition.

14. Section one hundred and six of the Customs (Consolidation) Act, 1876, so far as it relates to the case where goods are found to be of less value for home use than the amount of the drawback claimed, shall not apply to articles of clothing used only as models for trade exhibition.

15. The Commissioners may, in relation to any articles to which this Schedule applies, relax as they may think fit any provisions contained in the Customs (Consolidation) Act, 1876, or in any enactment amending that Act, with respect to the giving of security or entry before shipment.

16. The Commissioners may make regulations requiring persons having been concerned at any stage with the goods in question to furnish such information as may be reasonably necessary for enabling a calculation to be made of the drawback payable on the exportation of any silk or artificial silk, and if any person contravenes or fails to comply with any such regulation, he shall

in respect of every offence be liable to an excise penalty of fifty pounds.

2ND SCH.  
—cont.

17. In this Schedule, unless the context otherwise requires, the following expressions have the meaning hereby assigned to them respectively, that is to say :—

“Tissue” includes tissues of all kinds and of any width, whether woven or knitted ;

“Discharged” means “from which the gum has been removed” ;

“Silk yarn” means thrown or spun silk, silk yarn and silk threads of all kinds ;

“Artificial silk yarn” means artificial silk yarn, thread and straw.

#### PART IV.

#### ALTERNATIVE SCALE OF DRAWBACKS IN RESPECT OF ARTIFICIAL SILK.

| Article.                                                             | Rates of drawback.                                                                             |                                                                                                |
|----------------------------------------------------------------------|------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
|                                                                      | In respect of material contained in the goods being material on which a Customs duty was paid. | In respect of material contained in the goods being material on which an Excise duty was paid. |
| Singles yarn made from staple fibre or other waste - the lb.         | s. d.<br>1 2                                                                                   | s. d.<br>0 7                                                                                   |
| Doubled or twisted thread advanced beyond the stage of singles yarn— |                                                                                                |                                                                                                |
| Made from staple fibre or other waste - the lb.                      | 1 3                                                                                            | 0 8                                                                                            |
| Made from singles yarn the lb.                                       | 2 3                                                                                            | 1 2                                                                                            |
| Tissues—                                                             |                                                                                                |                                                                                                |
| Made from staple fibre or other waste - the lb.                      | 1 4                                                                                            | 0 9                                                                                            |
| Made from singles yarn the lb.                                       | 2 4                                                                                            | 1 3                                                                                            |

---

Sections 8,  
9.

### THIRD SCHEDULE.

#### PART I.

#### PREFERENTIAL REDUCTIONS OF CUSTOMS DUTIES IN CASE OF SUGAR, MOLASSES, GLUCOSE AND SACCHARIN.

| Article.                                                                                                               |            | Amount of<br>reduction. |      |
|------------------------------------------------------------------------------------------------------------------------|------------|-------------------------|------|
|                                                                                                                        |            | s.                      | d.   |
| Sugar which, when tested by the polariscope indicates a polarisation exceeding ninety-eight degrees - - - - - the cwt. |            | 4                       | 3½   |
| Sugar of a polarisation not exceeding seventy-six degrees - - - - - the cwt.                                           |            | 2                       | 0½   |
| Sugar of a polarisation—                                                                                               |            |                         |      |
| Exceeding 76 and not exceeding 77                                                                                      | - the cwt. | 2                       | 1·5  |
| „ 77                                                                                                                   | „ 78 - „   | 2                       | 2·3  |
| „ 78                                                                                                                   | „ 79 - „   | 2                       | 3·1  |
| „ 79                                                                                                                   | „ 80 - „   | 2                       | 4·0  |
| „ 80                                                                                                                   | „ 81 - „   | 2                       | 4·8  |
| „ 81                                                                                                                   | „ 82 - „   | 2                       | 5·6  |
| „ 82                                                                                                                   | „ 83 - „   | 2                       | 6·4  |
| „ 83                                                                                                                   | „ 84 - „   | 2                       | 7·3  |
| „ 84                                                                                                                   | „ 85 - „   | 2                       | 8·3  |
| „ 85                                                                                                                   | „ 86 - „   | 2                       | 9·2  |
| „ 86                                                                                                                   | „ 87 - „   | 2                       | 10·1 |
| „ 87                                                                                                                   | „ 88 - „   | 2                       | 11·1 |
| „ 88                                                                                                                   | „ 89 - „   | 3                       | 0·2  |
| „ 89                                                                                                                   | „ 90 - „   | 3                       | 1·4  |
| „ 90                                                                                                                   | „ 91 - „   | 3                       | 2·6  |
| „ 91                                                                                                                   | „ 92 - „   | 3                       | 3·9  |
| „ 92                                                                                                                   | „ 93 - „   | 3                       | 5·1  |
| „ 93                                                                                                                   | „ 94 - „   | 3                       | 6·3  |
| „ 94                                                                                                                   | „ 95 - „   | 3                       | 7·6  |
| „ 95                                                                                                                   | „ 96 - „   | 3                       | 8·8  |
| „ 96                                                                                                                   | „ 97 - „   | 3                       | 10·0 |
| „ 97                                                                                                                   | „ 98 - „   | 3                       | 11·3 |



3RD SCH.  
—cont.

## PART III.

PREFERENTIAL RATES IN RESPECT OF THE NEW  
CUSTOMS DUTIES.

| Goods.                                                     | Rates of duty.                |
|------------------------------------------------------------|-------------------------------|
| Goods on which a duty is imposed by section 3 of this Act. | Two-thirds of the full rate.  |
| Silk and artificial silk - - -                             | Five-sixths of the full rate. |
| Hops - - - - -                                             | Two-thirds of the full rate.  |
| Lace and embroidery - - -                                  | Two-thirds of the full rate.  |

Section 22.

## FOURTH SCHEDULE.

## SCALE OF RATES OF ESTATE DUTY.

| Principal Value of the Estate. |         |                   |         | Rate<br>per cent.<br>of duty. |
|--------------------------------|---------|-------------------|---------|-------------------------------|
|                                |         |                   |         |                               |
| Exceeding                      | £       | and not exceeding | £       |                               |
|                                | 100     |                   | 500     | - - 1                         |
| "                              | 500     | " "               | 1,000   | - - 2                         |
| "                              | 1,000   | " "               | 5,000   | - - 3                         |
| "                              | 5,000   | " "               | 10,000  | - - 4                         |
| "                              | 10,000  | " "               | 12,500  | - - 5                         |
| "                              | 12,500  | " "               | 15,000  | - - 6                         |
| "                              | 15,000  | " "               | 18,000  | - - 7                         |
| "                              | 18,000  | " "               | 21,000  | - - 8                         |
| "                              | 21,000  | " "               | 25,000  | - - 9                         |
| "                              | 25,000  | " "               | 30,000  | - - 10                        |
| "                              | 30,000  | " "               | 35,000  | - - 11                        |
| "                              | 35,000  | " "               | 40,000  | - - 12                        |
| "                              | 40,000  | " "               | 45,000  | - - 13                        |
| "                              | 45,000  | " "               | 50,000  | - - 14                        |
| "                              | 50,000  | " "               | 55,000  | - - 15                        |
| "                              | 55,000  | " "               | 65,000  | - - 16                        |
| "                              | 65,000  | " "               | 75,000  | - - 17                        |
| "                              | 75,000  | " "               | 85,000  | - - 18                        |
| "                              | 85,000  | " "               | 100,000 | - - 19                        |
| "                              | 100,000 | " "               | 120,000 | - - 20                        |
| "                              | 120,000 | " "               | 140,000 | - - 21                        |
| "                              | 140,000 | " "               | 170,000 | - - 22                        |
| "                              | 170,000 | " "               | 200,000 | - - 23                        |
| "                              | 200,000 | " "               | 250,000 | - - 24                        |

| Principal Value of the Estate. |                           | Rate<br>per cent.<br>of duty. | 4TH SCH.<br>—cont. |
|--------------------------------|---------------------------|-------------------------------|--------------------|
| £                              | £                         |                               |                    |
| Exceeding 250,000              | and not exceeding 325,000 | - -                           | 25                 |
| „ 325,000                      | „ „ 400,000               | - „                           | 26                 |
| „ 400,000                      | „ „ 500,000               | - -                           | 27                 |
| „ 500,000                      | „ „ 750,000               | - -                           | 28                 |
| „ 750,000                      | „ „ 1,000,000             | - -                           | 29                 |
| „ 1,000,000                    | „ „ 1,250,000             | - -                           | 30                 |
| „ 1,250,000                    | „ „ 1,500,000             | - -                           | 32                 |
| „ 1,500,000                    | „ „ 2,000,000             | - -                           | 35                 |
| „ 2,000,000                    | „ „ - -                   | - -                           | 40                 |

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## FIFTH SCHEDULE.

Section 28.

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### ENACTMENT REPEALED.

| Session<br>and<br>Chapter. | Short Title.            | Extent of Repeal. |
|----------------------------|-------------------------|-------------------|
| 10 & 11 Geo. 5.<br>c. 18.  | The Finance Act, 1920 - | Section sixteen.  |

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## CHAPTER 37.

An Act to provide for the exemption, in certain circumstances, of Foreign ships and British ships registered outside the United Kingdom from certain provisions of the Merchant Shipping Acts. [30th June 1925.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present